

2 July 2025 / mti



29534/ICA3

ELCOMPONICS HOLDINGS B.V. (The Netherlands) vs/ 1. INVICTUS GMBH (Austria)
2. INVICTUS CABLE GMBH (Austria)

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Dear Mesdames and Sirs,

The Secretariat acknowledges receipt of Respondents' correspondence dated 25 June 2025, by which it requests an extension to submit the Answer to the Request for Arbitration ("Answer"), a copy of which is enclosed for Claimant. We invite the parties to send copies of all correspondence with the Secretariat directly to all other parties.

Extension of Time for Submitting the Answer

Respondent requested an extension of time of 30 days, until 4 August 2025 for submitting the Answer (Articles 5(2) and 5(4)). According to the delivery receipt, the Request was received by Respondent on 3 June 2025. Therefore, the 30-day time limit to submit the Answer expires on 3 July 2025 (Article 5(1)).

We grant Respondent until **4 August 2025** to submit the Answer (Articles 5(2) and 5(4)). This extension will not prevent this arbitration from moving forward (Article 6(3)).

Constitution of the Arbitral Tribunal

The arbitration agreement provides for one arbitrator.

The parties having not jointly nominated the arbitrator, the Court will appoint the sole arbitrator (Article 12(3)).

International Chamber of Commerce | Chambre de Commerce Internationale (ICC)
Secretariat of ICC International Court of Arbitration | Secrétariat de la Cour Internationale d'Arbitrage

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Claimant proposes “that the ICC Court appoint a suitable sole arbitrator with the following qualifications: (a) Extensive experience in international commercial arbitration, particularly involving joint venture disputes, shareholder agreements, and complex financial issues; (b) Familiarity with English law (the governing law of the SHA) and understanding of Austrian corporate law principles relevant to the dispute; (c) Financial understanding sufficient to comprehend accounting issues and expert evidence related to EBITDA calculations and financial statement analysis (d) Fluency in English (the language of the arbitration); (d) [sic] availability to conduct the arbitration efficiently with attention to the time-sensitive nature of Put Option enforcement.”

Respondents’ submit that “the qualifications listed by the Claimant should constitute a proposal or guideline for the ICC Court rather than an absolute requirement”.

Respondents further emphasize “[r]egarding point (b) above, [...] the importance for the sole arbitrator to have a thorough knowledge and understanding of Austrian corporate and tax law.” adding that “[t]he sole arbitrator should therefore primarily be qualified to rule on matters of Austrian law.”

Respondents add that “the sole arbitrator should also be acquainted with English law” and state that “[w]hile familiarity with English law is certainly helpful, interpreting the provisions of the SHA, which is governed by English law, will mainly turn on contract interpretation rather than addressing complex issues of English law”.

We invite Claimant’s comments on Respondents’ suggestions **by 8 July 2025**.

Effect of the Arbitration Agreement

If any party against which a claim has been made does not submit an Answer, the arbitration will proceed and the arbitral tribunal will decide any question of jurisdiction or of whether the claims may be determined together, unless the Secretary General refers the matter to the Court for its decision (Article 6(3)). Furthermore, if any party refuses or fails to take part in the arbitration or any stage thereof, the arbitration shall proceed notwithstanding such refusal or failure (Article 6(8)).

Representation by Counsel

We understand that Respondent is represented by BAKER MCKENZIE. Accordingly, all future correspondence addressed to Respondent will be sent solely to its counsel.

Each party must promptly inform the Secretariat, the arbitral tribunal and the other parties of any changes in its representation (Article 17).

Communication with the Secretariat

We remind you that your arbitration proceedings benefit from the ICC’s Dispute Resolution Services case management digital platform, ICC Case Connect.

According to our system records, the following party representatives have connected to ICC Case Connect:

Pooja Dadoo (on behalf of Claimant)
Malika Nanduru (on behalf of Claimant)
Filip Boras (on behalf of Respondent)
Markus Schwaiger (on behalf of Respondent)

Unless otherwise informed, we understand that the above named individuals are authorised to receive correspondence addressed to the parties in this arbitration and as such all future correspondence from the Secretariat will be sent to the parties by Case Connect only.

Party representatives who have not yet connected to Case Connect are encouraged to do so promptly via this link [ICC Case Connect](#). Please contact the dedicated ICC Case Connect helpdesk (caseconnect@iccwbo.org) for assistance and technical support.

Yours faithfully,



Mihaela Tarnovschi
Deputy Counsel
Secretariat of the ICC International Court of Arbitration

encl. - Copy of Respondents' correspondence dated 25 June 2025 (*for Claimant*)

c.c.

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